



**PERMANENT MISSION OF THE REPUBLIC OF GUYANA
TO THE
ORGANIZATION OF AMERICAN STATES**

Note No:105 /2019

The Permanent Mission of the Cooperative Republic of Guyana to the Organization of American States (OAS) presents its compliments to the Department of International Law of the Secretariat for Legal Affairs of the General Secretariat and has the honour to refer to the Department's communication dated March 20, 2019, forwarding a questionnaire on the Application of International Law in Cyberspace.

In this regard, the Permanent Mission has the further honour to forward the below response prepared by the Attorney General's Chambers and Ministry of Legal Affairs.

1. Has your government previously issued an official paper, speech, or similar statement summarizing how it understands international law applies to cyber operations? Please provide copies or links to any such statements.

Answer: No.

2. Do existing fields of international law (including the prohibition on the use of force, the right of self-defense, international humanitarian law, and human rights) apply to cyberspace? Are there areas where the novelty of cyberspace excludes the application of a particular set of international legal rights or obligations?

Answer: The Government of Guyana has not issued any official paper or similar statement on the application of international law in cyberspace. Given the proliferation of the use of Information and Communications Technology (ICT), this has resulted in the rise of a new concept of "cyberwarfare" due to cyber operations/cyberattacks. As a result, there is a raging debate as to whether existing

fields of international law apply to cyberspace. In the United Nations Report of the Group of Government Experts on Developments in the field of Information and Telecommunications in the Context of International Security, experts found that “International law, in particular the Charter to the United Nations, is applicable and is essential to maintaining peace and stability and promoting an open and secure and accessible ICT environment”. It is respectfully submitted that while it is acknowledged that international law should or ought to apply to cyberspace, given the nature of cyberspace and non-physical elements of attacks and consequences, it is difficult to easily apply existing principles of international law, for example with the “use of force”, where it traditionally implies some physical element and armed attacks which traditionally imply some sort of weapon. In the cyberspace, these cyber operations do not fit into traditional concepts.

3. Can a cyber operation by itself constitute a use of force? Can it constitute an armed attack that triggers a right of self-defense under Article 51 of the UN Charter? Can a cyber operation qualify as a use of force or armed attack without causing the violent effects that have been used to mark such thresholds in past kinetic conflicts?

Answer: Cyberspace is, “a global domain within the information environment consisting of the interdependent network of information technology infrastructures, including the internet, telecommunications networks, computer systems, etc.”¹ A cyber operation therefore covers the entire scope of cyberspace and related operations, both technical and non-technical. According to Black’s law dictionary, force is, “Power dynamically considered, that is, in motion or in action”. Use of force relates to the extent to which this power is used. Consequently, a cyber operation by itself may not constitute a use of force.

According to Black’s law dictionary, “A vessel is “armed” when she is fitted with a full armament (military weapons and equipment) for fighting purposes”. Article 51 of the UN Charter², refers to an armed attack triggering self-defense. In looking at the definition of cyberspace, no physical weaponry is involved and therefore a cyber operation may not be considered an armed attack, triggering self-defense by a State. A cyber operation may not qualify as use of force or an armed attack. However,

¹ <https://www.usna.edu/Academics/Majors-and-Courses/Majors/Cyber-Operations.php>

² “Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security. Measures taken by Members in the exercise of this right of self-defence shall be immediately reported to the Security Council and shall not in any way affect the authority and responsibility of the Security Council under the present Charter to take at any time such action as it deems necessary in order to maintain or restore international peace and security.”

according to Laurent Gisel³, “*While most cyber attacks are not linked to an armed conflict, various types of cyber operations have been used during armed conflicts*”.

4. Outside of armed conflicts, when would a State be responsible for the cyber operations of a non-State actor? What levels of control or involvement must a State have with respect to the non-State actor’s operations to trigger the international legal responsibility of that State?

Answer: Generally, state responsibility defines the circumstances in which a state will be held to have breached its international obligations, as well as the limited catalogue of justifications and defenses a state may rely upon in order to avoid responsibility for an otherwise wrongful act⁴. The primary point of reference in relation to the law of state responsibility is the Articles on the Responsibility of States for Internationally Wrongful Acts (the International Law Commission Articles). Under Chapter II, Part I of the Responsibility of States for Internationally Wrongful Acts, 2001, several situations are set out where a State would be held responsible for acts of a State Organ, person or entities. For example, where a State acknowledges and adopts the conduct in question as its own⁵.

According to Article 8 of the Responsibility of States... Articles, “*The conduct of a person or group of persons shall be considered an act of a State under international law if the person or group of persons is in fact acting on the instructions of, or under the direction or control of that State in carrying out the conduct*”. However, no mention of level of control is provided for.

5. Are the standards of State responsibility the same or different in the context of an armed conflict as that term is defined in Articles 2 and 3 common to the 1949 Geneva Conventions?

Answer: Article 2 of the Convention refers to declarations of war or armed conflicts between high contracting parties (States who are parties to the Conventions). Article 3 refers to armed conflicts not of an international character. As it relates to armed conflict between States, where a State is found responsible under the Responsibility of States... Articles, there is a duty to start reparation. Further, the concept of State responsibility relates to other States instead of internal conflict. Therefore, only if this conflict affects another State, then the need to determine responsibility arises.

³ Senior Legal Adviser and Lukasz Olejnick, Scientific Adviser on Cyber, Legal Division, International Committee of the Red Cross

⁴ Silvia Borelli. State Responsibility in International Law. February 2017.

⁵ Article 11.

6. Under international humanitarian law, can a cyber operation qualify as an “attack” for the rules governing the conduct of hostilities if it does not cause death, injury or direct physical harm to the targeted computer system or the infrastructure it supports? Could a cyber operation that produces only a loss of functionality, for example, qualify as an attack? If so, in which cases?

Answer: As it relates to the first part of this question, the issue is to determine whether the harmful outcome produced by a cyber operation constitutes an attack. Article 49 of Additional Protocol I of the Geneva Convention defines an attack as “an act of violence against the adversary whether in offence or in defence”. Violence relates to the consequences of the attack and not the means used to create those consequences. The International Humanitarian Law (IHL) seeks to limit the effects of armed conflict and the rules do not apply to non-physical means of warfare.

Psychological or economic warfare such as the dissemination of propaganda or the establishment of an embargo do not amount to an attack. A cyber operation which does not result in death, injury or direct physical harm cannot constitute an attack according to the rules of International Humanitarian Law.

b. When a cyber operation produces a loss of functionality, it may or may not constitute an attack. Not every disruption of computer based communications would constitute an attack. Some disruptions can have far reaching impacts. Disruption of communications such as television and radio broadcast cannot be considered as an attack under the rules of IHL. Cyber operations that undermine the functioning of computer systems or infrastructure needed for the provision of services and resources to the civilian population constitutes an attack. Pursuant to Article 54 (2) of Additional Protocol it is “prohibited to attack, destroy, remove or render useless objects indispensable to the survival of the civilian population”. Installations such as nuclear plants, hospital system, banking systems and air traffic control rely on computer systems and if loss of functionality occurs because of cyber operations, it can be classified as an attack.

7. Is a cyber operation that only targets data governed by the international humanitarian law obligation to direct attacks only against military objectives and not against civilian objects?

Answer: The International Court of Justice has described this principle of distinction between military objects and civilian objects as part of “the cardinal principles contained in the texts constituting the fabric of humanitarian law” and this view has caused some to argue that this principle should apply in any type of conflict. However, according to the Tallinn Manual, it is argued that the prohibition on attacking civilian objects only applies to cyber operations that qualify as “attacks”. As it relates to data, in determining whether this principle should apply, regard should be had to whether the cyber operation that targets data has produced such a loss of

functionality that it may constitute as an attack. Regard must be paid to examining the threshold of harm caused. In some instances, the deletion, suppression, corruption of data may have far reaching consequences. Pursuant to Article 54 (2) of Additional Protocol it is “prohibited to attack, destroy, remove or render useless objects indispensable to the survival of the civilian population”. Should the cyber operation affect data in such a way, the principle of distinction should apply.

8. Is sovereignty a discrete rule of international law that prohibits States from engaging in specific cyber operations? If so, does that prohibition cover cyber operations that fall below the use of force threshold and which do not otherwise violate the duty of non-intervention?

Answer: A State can engage in certain cyber operations but it must not conduct cyber operations that violate the sovereignty of another state. If a State’s sovereignty is violated, it amounts to a breach of international law. Whether a violation occurs depends on the degree of infringement and whether there has been an interference with Government functions.

Cyber infrastructure located in areas covered by the territorial sovereignty is protected against interference by other States. This protection is not limited to activities amounting to an unjustified use of force, to an armed attack or to a prohibited intervention.

9. Does due diligence qualify as a rule of international law that States must follow in exercising sovereignty over the information and communication technologies in their territory or under the control of their nationals?

Answer: Yes, due diligence should qualify as a rule because it underlines a state’s responsibility as it relates to exercising control over information and communication technologies. States have a right to exercise their territorial jurisdiction over cyber activities within their territories. Under the principle of territorial sovereignty a state is entitled to exercise territorial jurisdiction, especially by subjecting objects and persons within its territory to domestic legislation and to enforce these rules.

10. Are there other rules of international law that your government believes are important to highlight in assessing the regulation of cyber operations by States or actors for which a State is internationally responsible?

Answer: In regulating cyberspace, it might be prudent to have a set of international law principles that are tailored to the special nature of cyberspace. The current principles were developed at the time where we could not have envisioned the

evolution of warfare to include virtual attacks. As it relates to the peculiarities of cyberspace, one should be cognizant of the fact that anonymity in cyberspace makes it difficult to identify or trace the actors involved in these attacks and accountability is hard to establish as it would be in traditional warfare.

The Permanent Mission of the Cooperative Republic of Guyana avails itself of this opportunity to renew to the Department of International Law of the Secretariat for Legal Affairs of the General Secretariat the assurances of its highest consideration.

**Washington, D.C.
July 30, 2019**

